

Product Classification & Regulation

GOVERNMENT ANALYSTS AND INSPECTORS FOR AYURVEDIC (INCLUDING SIDDHA) OR UNANI DRUGS

162. Duties of Inspectors specially authorised to inspect the manufacture of Ayurvedic (including Siddha) or Unani drugs:

TITLE:

Duties of Inspectors for Ayurvedic, Siddha and Unani Drugs

JURISDICTION:

India

CATEGORY:

Product Quality Control & Regulatory Compliance

SOURCE CITATION:

Drugs and Cosmetics Rules, 1945 – Rule 162

PLAIN ENGLISH SUMMARY:

Inspectors responsible for Ayurvedic, Siddha and Unani drug manufacturing must inspect licensed manufacturing premises at least twice a year. They must check compliance with the licence, Act and Rules, send inspection reports, collect samples for testing, and take legal action against violations.

THE EXACT LEGAL TEXT:

162. Duties of Inspectors specially authorised to inspect the manufacture of Ayurvedic (including Siddha) or Unani drugs—Subject to the instructions of the controlling authority, it shall be the duty of an Inspector authorised to inspect the manufacture of Ayurvedic (including Siddha) or Unani drugs—

(i) to inspect not less than twice a year, all premises licensed for manufacture of Ayurvedic (including Siddha) or Unani drugs within the area allotted to him and to satisfy himself that the conditions of the licence and the provisions of the Act and the rules made thereunder are being observed;

(ii) to send forthwith to the controlling authority after each inspection a detailed report indicating whether or not the conditions of the licence and the provisions of the Act and the rules made thereunder are being observed;

(iii) to take samples of the drugs manufactured on the premises and send them for test or analysis in accordance with these rules;

(iv) to institute prosecutions in respect of violation of the Act and the Rules made thereunder.

KEYWORDS/TRIGGERS:

Rule 162, Ayurvedic drug inspection, Siddha drug inspection, Unani drug inspection, manufacturing inspection, drug samples testing, regulatory compliance, violation prosecution

163. Procedure for despatch of sample to Government Analyst and its receipt by the Government Analyst

TITLE:

Procedure for Despatch and Receipt of Samples by Government Analyst

JURISDICTION:

India

CATEGORY:

Product Quality Control & Regulatory Compliance

SOURCE CITATION:

Drugs and Cosmetics Rules, 1945 – Rule 163

PLAIN ENGLISH SUMMARY:

Rule 163 specifies how Ayurvedic, Siddha and Unani drug samples must be securely sent to the Government Analyst for testing. It covers sealed packaging, identification numbers, seal records, and sending the test results to the sender, Controlling Authority and Drugs Controller, India.

THE EXACT LEGAL TEXT:

163. Procedure for despatch of sample to Government Analyst and its receipt by the Government Analyst—(1) Sample for test or analysis shall be sent to the Government Analyst by registered post or by hand in a sealed package, enclosed together with a memorandum in Form 18-A in an outer cover addressed to the Government Analyst.

(2) The package as well as the outer cover shall be marked with a distinguishing number.

(3) A copy of the memorandum and a specimen impression of the seal used to seal the package shall be sent by registered post or by hand to the Government Analyst.

(4) On receipt of the package from an Inspector, the Government Analyst or an Officer authorised by him in writing in this behalf shall open the package and shall also record the conditions of the seals on the package.

(5) After the test or analysis has been completed, one copy of the results of the test or analysis shall be supplied forthwith to the sender in Form 13-A. A copy of the result in

Form 13A shall also be sent simultaneously to the Controlling Authority and to the Drugs Controller, India.

KEYWORDS/TRIGGERS:

Rule 163, Government Analyst, sample despatch, drug sample testing, sealed package, Form 18-A, Form 13-A, test analysis report

PHARMACOPOEIAL LABORATORY FOR INDIAN MEDICINES TO FUNCTION AS CENTRAL DRUGS LABORATORY FOR THE PURPOSE OF TESTING OR ANALYSIS OF AYURVEDA, SIDDHA AND UNANI DRUGS

163.A Functions :

TITLE:

Functions of Pharmacopoeial Laboratory for Indian Medicine

JURISDICTION:

India

CATEGORY:

Product Quality Control & Regulatory Compliance

SOURCE CITATION:

Drugs and Cosmetics Rules, 1945 – Rule 163A

PLAIN ENGLISH SUMMARY:

Rule 163A designates the Pharmacopoeial Laboratory for Indian Medicine at Ghaziabad as a Central Drugs Laboratory for testing and analysis of Ayurvedic, Siddha and Unani drugs. It is responsible for developing pharmacopoeial standards and monographs, testing drug samples, maintaining reference resources, supporting quality-control training, and performing other duties assigned by the Government of India.

THE EXACT LEGAL TEXT:

163.A Functions - The Pharmacopoeial Laboratory for Indian Medicine at Ghaziabad shall function as a Central Drugs Laboratory for the purpose of testing or analysis of Ayurveda, Siddha and Unani Drugs. Its functions shall be:-

- (1) to develop Pharmacopoeial standards and draft monographs and amendments alongwith standardized methods for the Ayurvedic, Siddha, Unani drugs;
- (2) to act as Central Appellate Drug Laboratory for testing of Ayurveda, Siddha and Unani drugs,
- (3) to analyse or test such samples of Ayurvedic, Siddha, Unani drugs as may be sent to it under sub-section (2) of section 11, or under sub-section (4) or section 25, of the Act;

(4) to maintain reference museum and herbarium for the drugs used in Ayurveda, Siddha and Unani (ASU) system.

(5) to run a training centre for quality control methods in the Ayurveda, Siddha or Unani systems of medicines;

(6) to carry out such other duties as may be entrusted to it by the Government of India.

KEYWORDS/TRIGGERS:

Rule 163A, Pharmacopoeial Laboratory for Indian Medicine, PLIM, Central Drugs Laboratory, pharmacopoeial standards, Ayurvedic drug testing, ASU drug quality control, drug monographs
164. Method of test or analysis to be employed in relation to Ayurvedic (including Siddha) or Unani drugs.

TITLE:

Method of Test or Analysis for Ayurvedic, Siddha and Unani Drugs

JURISDICTION:

India

CATEGORY:

Product Quality Control & Regulatory Compliance

SOURCE CITATION:

Drugs and Cosmetics Rules, 1945 – Rule 164

PLAIN ENGLISH SUMMARY:

Rule 164 states that Ayurvedic, Siddha and Unani drugs should be tested using the methods specified in the relevant Pharmacopoeia. If no suitable pharmacopoeial method is available, the Government Analyst may use a scientifically established test to verify whether the drug contains the ingredients stated on its label.

THE EXACT LEGAL TEXT:

164. Method of test or analysis to be employed in relation to Ayurvedic (including Siddha) or Unani drugs.—The method of test or analysis to be employed in relation to an Ayurvedic (including Siddha) or Unani drug shall be such as may be specified in the Ayurvedic (including Siddha) or Unani Pharmacopoeia, or if no such pharmacopoeias are available or if no tests are specified in such pharmacopoeias, such tests as the Government Analyst may employ, such tests being scientifically established to determine whether the drug contains the ingredients as stated on the label.

KEYWORDS/TRIGGERS:

Rule 164, Ayurvedic drug testing, Siddha drug testing, Unani drug testing, Pharmacopoeia, Government Analyst, drug analysis, pharmacopoeial test

166. Duties of Government Analyst

TITLE:

Duties of Government Analyst for Ayurvedic, Siddha and Unani Drugs

JURISDICTION:

India

CATEGORY:

Product Quality Control & Regulatory Compliance

SOURCE CITATION:

Drugs and Cosmetics Rules, 1945 – Rule 166

PLAIN ENGLISH SUMMARY:

Rule 166 defines the duties of a Government Analyst in relation to Ayurvedic, Siddha and Unani drugs. The Government Analyst must test or arrange for testing of drug samples received from authorised Inspectors or authorities and provide reports of the test or analysis results. The Analyst also submits reports of analytical work and research to the Government for possible publication.

THE EXACT LEGAL TEXT:

166. Duties of Government Analyst– (1) The Government Analyst shall analyze or test or cause to be analyzed or tested such samples of Ayurvedic (including Siddha) or Unani drugs as may be sent to him by Inspectors or any other persons or authority authorised by the Central Government or State Government under the provisions of Chapter IV A of the Act and shall furnish reports of the results of test or analysis in accordance with these rules.

(2) A Government Analyst appointed under section 33F shall from time to time forward to the Government reports giving the result of analytical work and research with a view to their publications at the discretion of the Government.

KEYWORDS/TRIGGERS:

Rule 166, Government Analyst, Ayurvedic drug analysis, Siddha drug testing, Unani drug testing, test report, analytical work, drug quality control

- Title: Definitions
- Jurisdiction: India
- Category: Classification
- Source Citation: Drugs and Cosmetics Act, 1940, Section 3

- Plain English Summary:
This section defines important terms used in the Drugs and Cosmetics Act, including Ayurvedic, Siddha or Unani drugs, cosmetics, drugs, manufacture, import, and patent or proprietary medicines. For an Ayurvedic startup or researcher, these definitions are important for determining how an Ayurvedic product is classified under the Act.
- The Exact Legal Text:
3. Definitions.—In this Act, unless there is anything repugnant in the subject or context,—
 - (a) "Ayurvedic, Siddha or Unani drug" includes all medicines intended for internal or external use for or in the diagnosis, treatment, mitigation or prevention of disease or disorder in human beings or animals, and manufactured exclusively in accordance with the formulae described in, the authoritative books of Ayurvedic, Siddha and Unani Tibb systems of medicine, specified in the First Schedule;
 - (aa) "the Board" means—
 - (i) in relation to Ayurvedic, Siddha or Unani drug, the Ayurvedic, Siddha and Unani Drugs Technical Advisory Board constituted under section 33C; and
 - (ii) in relation to any other drug or cosmetic, the Drugs Technical Advisory Board constituted under section 5;
 - (aaa) "cosmetic" means any article intended to be rubbed, poured, sprinkled or sprayed on, or introduced into, or otherwise applied to, the human body or any part thereof for cleansing, beautifying, promoting attractiveness, or altering the appearance, and includes any article intended for use as a component of cosmetic;
 - (b) "drug" includes—
 - (i) all medicines for internal or external use of human beings or animals and all substances intended to be used for or in the diagnosis, treatment, mitigation or prevention of any disease or disorder in human beings or animals, including preparations applied on human body for the purpose of repelling insects like mosquitoes;
 - (ii) such substances (other than food) intended to affect the structure or any function of the human body or intended to be used for the destruction of vermin or insects which cause disease in human beings or animals, as may be specified from time to time by the Central Government by notification in the Official Gazette;
 - (iii) all substances intended for use as components of a drug including empty gelatin capsules; and
 - (iv) such devices intended for internal or external use in the diagnosis, treatment, mitigation or prevention of disease or disorder in human beings or animals, as may be specified from time to time by the Central Government by notification in the Official Gazette, after consultation with the Board;
 - (c) "Government Analyst" means—
 - (i) in relation to Ayurvedic, Siddha or Unani drug, a Government Analyst appointed by the Central Government or a State Government under section 33F; and
 - (ii) in relation to any other drug or cosmetic, a Government Analyst appointed by the Central Government or a State Government under section 20;
 - (e) "Inspector" means—
 - (i) in relation to Ayurvedic, Siddha or Unani drug, an Inspector appointed by the Central

Government or a State Government under section 33G; and

(ii) in relation to any other drug or cosmetic, an Inspector appointed by the Central Government or a State Government under section 21;

- (f) "manufacture" in relation to any drug or cosmetic includes any process or part of a process for making, altering, ornamenting, finishing, packing, labelling, breaking up or otherwise treating or adopting any drug or cosmetic with a view to its sale or distribution but does not include the compounding or dispensing of any drug, or the packing of any drug or cosmetic, in the ordinary course of retail business; and "to manufacture" shall be construed accordingly;
- (g) "to import", with its grammatical variations and cognate expressions means to bring into India;
- (h) "patent or proprietary medicine" means,—
 - (i) in relation to Ayurvedic, Siddha or Unani Tibb systems of medicine all formulations containing only such ingredients mentioned in the formulae described in the authoritative books of Ayurveda, Siddha or Unani Tibb systems of medicine specified in the First Schedule, but does not include a medicine which is administered by parenteral route and also a formulation included in the authoritative books as specified in clause (a);
 - (ii) in relation to any other systems of medicine, a drug which is a remedy or prescription presented in a form ready for internal or external administration of human beings or animals and which is not included in the edition of the Indian Pharmacopoeia for the time being or any other Pharmacopoeia authorised in this behalf by the Central Government after consultation with the Drugs Technical Advisory Board constituted under section 5;
- (i) "prescribed" means prescribed by rules made under this Act.
- Keywords/Triggers:
Ayurvedic drug, classical formulation, patent or proprietary medicine, Ayurvedic drug classification, cosmetic, drug definition, manufacture, First Schedule